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Distinguished Jurist: The Unused Route to Appoint an SC Judge

Distinguished jurist: The unused route to appoint an SC judge

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DECADES AFTER the Constitution came into force, one route to becoming a Supreme Court judge has never been taken. At a convocation address on August 30, Supreme Court judge Justice Ujjal Bhuyan pointed to Article 124(3), which allows the appointment of a “distinguished jurist” as a Supreme Court judge, and called it an “unused mandate” of the Constitution that “needs our serious attention.”

He said that having a distinguished jurist on the bench would “diversify the Bench” and that they “would not remain constricted by narrow technicalities thereby being in a stronger position to deal with public law issues.” He said the “participation of... legal academia and scholars would have a defining impact on the judicial functioning of the Supreme Court.”

What the Constitution states

Article 124 sets out how the Supreme Court is constituted. Article 124(3) lists who can be appointed as a judge, ie., a citizen of

India who has either served as a High Court judge for five years, practised as an advocate for ten years, or “is, in the opinion of the President, a distinguished jurist.”

The first two routes are how the court has always been staffed. Most judges have been elevated from the High Courts, while a smaller number of lawyers have been appointed directly from the Bar. The most recent was Justice V Mohana, recommended by the collegium in May 2026 and sworn in the following month. The third category, the appointment of distinguished jurists, has simply never been used.

Article 217 lays down the conditions for the appointment of a High Court judge. The 42nd Amendment, enacted during the Emergency, added a provision allowing the appointment of a “distinguished jurist” as a judge of the High Court. However, the provision was eventually repealed by the 44th Constitutional Amendment.

Where the clause came from

The clause was added during the Constituent Assembly debates on May 24, 1949, after H V Kamath moved an amendment

Appointing a judge: 3 ways

- The Constitution sets out who can be made a SC judge: a citizen of India who has either served as a HC judge for 5 years; practised as an advocate for ten years; or ‘is, in the opinion of the President, a distinguished jurist’.

- The first two routes are how the court has always been staffed. The third route has never been used.

saying the pool of candidates shouldn’t be “necessarily confined to Judges or Advocates.” He said that India needed a way to bring in “men or for that matter, women who are possessed of outstanding legal and juristic learning,” even if they had never practised law. He pointed out that judges of the International Court of Justice at The Hague are chosen on similar terms.

B R Ambedkar didn’t object to the idea itself. His only hesitation was over the word “distinguished”, and he wondered whether “eminent” would be a better fit. He, however, left the final call to the Drafting Committee. The amendment eventually went through.

Who qualifies & why no one has

Justice Bhuyan offered two possible explanations for why the clause remains unused. “The first is that earlier in the view of the central government and thereafter of the collegium, there is not enough depth in the Indian academia to be considered for elevation as a judge of the Supreme Court. The second is that both the central government and the collegium have not seriously explored this provision thus far,” he said.

A “distinguished jurist” is generally understood to be anyone engaged in serious work in the practice, teaching or research of law, including those who do not require courtroom experience to fit the description. But this interpretation runs into a separate problem in India, where the Bar Council rules generally prevent full-time law teachers from practising law.

A further complication is the process of Supreme Court appointments itself. Appointments today are initiated through the collegium system, meaning that a jurist would first have to be recommended by the Supreme Court collegium before the appointment goes to the government.

In an interview in 2015 with *LiveLaw*, Upendra Baxi recalled being addressed as “Judge Baxi” by a professor, who had been told by Justice P N Bhagwati that Baxi would be made a judge within a few months. That appointment never materialised. Addressing the matter, Baxi said that “the Presidents of India have been looking with a telescope and have not found any jurist worth appointing as a Supreme Court Judge” and thus called it “a dead issue.”

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Qualifications for Appointment as a Judge:

According to Article 124(3) of the Constitution, a person can be appointed as a judge of the Supreme Court if he or she:

A person must be a citizen of India.

Must have served as a judge of a High Court for at least five years or two such courts in succession.

Alternatively, must have been an advocate of a High Court for at least ten years or two or more such courts in succession.

Must be a distinguished jurist in the opinion of the president.

Distinguished Jurist: The Unused Route to Appoint an SC Judge

- **What the Constitution States and Where It Came From**
 - The clause was added during Constituent Assembly debates on May 24, 1949, after H.V. Kamath argued India needed a way to bring in people with outstanding legal learning even without courtroom experience; Ambedkar's only hesitation was over the word 'distinguished', but the amendment went through.
- **Who Qualifies and Why No One Has Been Appointed**
 - A 'distinguished jurist' is generally understood as anyone in serious legal practice, teaching, or research but Bar Council rules generally prevent full-time law teachers from practising law, and appointments today are initiated through the collegium system.
- **A Related Precedent from High Courts**
 - The 42nd Amendment (Emergency-era) added a similar 'distinguished jurist' route for High Court judges under Article 217, but it was later repealed by the 44th Amendment.

China, US Are in a Race to Connect Science With Industry. India Must Catch Up

China, US are in race to connect science with industry. India must catch up



RAJA MANDALA
BY C RAJA MOHAN

BEHIND THE riot of robots running, dancing and playing at Beijing's second World Humanoid Games last week is an ambitious Chinese project to turn China into the world's leading science power. This ambition is rooted in President Xi Jinping's call to fully mobilise "new quality productive forces" being unleashed by the current revolutions in science and technology. Xi is convinced that China's next phase of growth cannot rely on cheap labour, large-scale manufacturing, infrastructure and capital accumulation. It must come from innovation.

AI is central to Xi's strategy. Beijing's objective is to diffuse AI across the physical economy — robotics, machine tools, automobiles, biotechnology, materials, energy, agriculture and scientific research. China's manufacturing depth is its advantage. Beijing is betting that fusing digital intelligence with the world's largest industrial ecosystem will make China the leading technological power.

For decades, China absorbed foreign technology, improved it through manufacturing and dominated production. It now wants to move upstream — from adaptation to original discovery. China spent 2.8 per cent of GDP on R&D in 2025; basic research expenditure rose by 11 per cent. The manufacturing power now seeks to become a science superpower.

The logic is simple: AI accelerates discovery; discovery produces technology; technology transforms industry; industrial strength generates national power and gives China a geopolitical edge.

Washington is reaching a similar conclusion, coming from the opposite direction. The Trump administration's Science: A New Golden Age, released in July, has been billed as the first major reset in US science policy since World War II. It begins by recognising

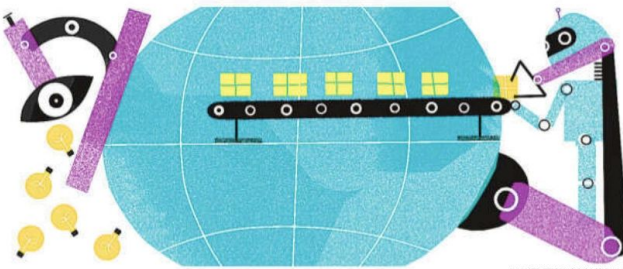


ILLUSTRATION: C R SASIKUMAR

American strengths — its great universities, laboratories, technology companies and capital markets. It also acknowledges the American weakness — the erosion of the capacity to turn discoveries into production.

Globalisation separated American innovation from manufacturing. Companies designed at home, produced abroad and depended on long supply chains. That model generated wealth but also vulnerabilities exposed by the pandemic, China's rise and geopolitical rivalry. Washington now wants to reintegrate the production of knowledge and manufacturing.

Washington and Beijing see AI not merely as a general-purpose technology, but as an accelerator central to the production of new knowledge that in turn will transform industry. By making discovery continuous with design and manufacturing, AI-driven science will transform production itself — and turn scientific speed into economic power and geopolitical capability.

China begins with the largest manufacturing base and moves upstream into science. America begins with the strongest scientific system and moves downstream into manufacturing. China fears dependence on American technology; the US fears dependence on Chinese production. Both seek to close the gap between knowledge and production.

This contest is not about who unveils the cleverest AI model or the most sophisticated humanoid. It is about building the most effective ecosystem connecting universities,

laboratories, entrepreneurs, finance, energy, factories, supply chains and markets.

Where does this leave India? Delhi recognises the trend and has launched several new missions — on AI, semiconductor production and quantum technologies. It also has a draft robotics policy. But two weaknesses stand out.

First, ambition and imagination are concentrated in government declarations at a time when the private sector contributes more than ever to producing knowledge in the US and China. Indian capital rarely articulates a project for mastering the new forces of production or a new project for science and basic research. This was not always so. Jamsetji Tata helped create the Indian Institute of Science in 1909; the Kiroloskars and other western Indian business families sent their children to the Massachusetts Institute of Technology from the 1920s. They recognised that independent India's future lay in mastering modern science. The Sir Dorabji Tata Trust supported Homi Bhabha in establishing the Tata Institute of Fundamental Research, which formed the nucleus of India's atomic energy and space programmes. Indian capital has sadly retreated from that tradition.

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The Economic Survey 2025-26 puts India's R&D expenditure at 0.64 per cent of GDP. In comparison, China spends about 2.8 per cent and the US 3.5. The World Intellectual Property Organisation estimates India's total R&D spend

at \$75 billion in purchasing-power-adjusted dollars, against \$786 billion for China and \$782 billion for the United States. In nominal dollar terms, India will look even less impressive.

Second, India has not reformed its scientific institutions. China's reform era launched in the late 1970s by Deng Xiaoping put the revitalisation of science and technology at the heart of his Four Modernisations. India's reform era, beginning in the 1990s, produced no comparable overhaul.

India and China both benefited from access to American universities that offered valuable training in advanced sciences for their vast talent pools. China combined that opportunity with massive domestic investment in science and higher education and incentives for researchers to return. To say that India's science sector does not attract talent back is an understatement.

If the Congress era saw the steady bureaucratisation of Indian science, the BJP is adding cultural nationalism to it. Civilisational pride cannot make mythology a substitute for evidence, experiment and scientific temper. India's most confident claim should not be that all modern science was discovered in its past, but that the greatest Indian contributions lie in the future.

Equally unfortunate is the Indian tendency to talk tall. Delhi's radical posturing on technological "self-reliance" in the 1970s and 1980s isolated India from global technological advances. Today, again, there is grandiose talk of "technological sovereignty". India must necessarily walk on two legs: Deepen cooperation with global science, capital, technology and talent while building domestic research, industrial and institutional capacity.

Without reform of the state-led science system and a massive commitment from private capital, Indian industry could well become a subaltern to Chinese and American science-industrial systems that are set to become as breathtaking as the robots we saw in Beijing last week.

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China, US Are in a Race to Connect Science With Industry. India Must Catch Up

- **The Ambition**

- Behind the riot of robots at Beijing's second World Humanoid Games is an ambitious Chinese project to become the world's leading science power, rooted in Xi Jinping's call to mobilise 'new quality productive forces' rather than rely on cheap labour and capital accumulation alone.
- AI is central to this strategy diffusing it across robotics, machine tools, biotechnology, energy, and scientific research; China spent 2.8% of GDP on R&D in 2025, with basic-research spending rising 11%.

- **The American Mirror Image**

- Washington reaches a similar conclusion from the opposite direction, the Trump administration's 'Science: A New Golden Age' report recognises US strengths (universities, labs, capital markets) but acknowledges eroded capacity to turn discoveries into production after globalisation separated innovation from manufacturing.
- China begins with the largest manufacturing base and moves upstream into science; America begins with the strongest scientific system and moves downstream into manufacturing both seek to close the gap between knowledge and production.

- **Where This Leaves India**

- Delhi has launched missions on AI, semiconductors, and quantum tech plus a draft robotics policy, but ambition stays concentrated in government declarations while Indian capital rarely funds its own science projects, unlike historical examples like Tata's founding of IISc.
- India also hasn't reformed its scientific institutions the way China did from the late 1970s, and its science sector struggles to attract talent back from abroad.

SC Seeks Centre's Response on Use of 'Totalisers' in EVM Vote Counting

SC seeks Centre's response on use of 'totalisers' in EVM vote counting

The court was hearing a petition arguing 'totalisers' would protect voters' privacy by concealing booth-wise voting patterns; EC says aggregating votes could make individual EVM functioning harder to verify, as it may mask glitches or human error

Krishnadas Rajagopal
NEW DELHI

The Supreme Court on Tuesday sought the Centre's response on the use of "totalisers", which are machines designed to consolidate and count votes from multiple electronic voting machine (EVM) control units simultaneously without revealing booth-wise voting trends, as a "fall-back option".

The court's order to the Centre came despite a warning from the Election Commission (EC) that bringing in totalisers now, when even EVMs are subject to frequent public questioning, may not be the right move.

"It is relevant to state that the present time is one in which the functioning and integrity of EVMs are still a subject of frequent public questioning... In such a climate, the introduction of new and as yet unregulated mechanisms such as totaliser could give rise to fresh allegations and controversy, thereby further complicating public confidence in an already



The poll panel says its main worry is whether totalisers can become fodder for further misapprehension about the EVMs. FILE PHOTO

sensitive area of the electoral process," the Election Commission (EC) cautioned.

'No legal framework'

The EC pointed out that there was a complete absence of a legal framework – neither the Representation of the People Act nor the Conduct of Election Rules, 1961, or any allied enactment contain any provision recognising, regulating or governing the use of a totaliser in counting votes. The EC said substantive amendments and revision of statutory procedure governing the count-

ing of votes would have to be made to include totalisers in the electoral process.

"The response from political parties to totalisers is a big 'no'. Three out of six national parties and 18 out of 29 State parties opposed the idea of totaliser. Only the Law Commission of India, in its 255th report, suggested their selective use," senior advocate Seshadhri Naidu, for the EC, submitted.

The court was hearing a petition filed by advocate Ashwini Kumar Upadhyay, who argued that totalisers would safeguard the privacy of individual voters and

protect them from reprisals. Mr. Upadhyay said political parties victimise voters at the local level after identifying voting patterns in particular polling booths.

A totaliser connects a cluster of 14 control units of EVMs used at 14 polling stations via a cable, which in turn would provide a consolidated result for each candidate in that group of EVMs.

'May hit transparency'

The EC, in an affidavit, said totalisers would reduce transparency. Currently, polling as well as counting is conducted in the presence of the candidates and their agents.

They are provided an opportunity through Form 17C to match vote count at the end of polling and after counting at every polling station. Form 17C data comparisons are also used at the time of adjudications before election tribunals and courts.

"The one-to-one, booth-wise and EVM-wise correspondence under Form 17C constitute the backbone of the self-verifying and tran-

sparent character of the present counting process. The transparency is necessary to give credence to the outcome of the elections. This knowledge of booth-level voting pattern may be utilised by political parties to improve their outreach programme in the booths where they have not performed up to their expectations, and make corrective organisational decisions," the EC said.

Totalisers would mask technical malfunction and human error in individual EVMs.

"EVMs clubbed together would stand concealed within the aggregate figure, and would become incapable of being identified, or independently verified by any party to the election... Totaliser, by its very design, aggregates the votes recorded across polling booths at a single point without preserving a distinct booth-wise, machine-wise trail," the poll body said.

The EC, however, said its main worry was whether totaliser would become fodder for further misapprehension about EVMs.

SC Seeks Centre's Response on Use of 'Totalisers' in EVM Vote Counting

- **The Petition and the Court's Move**

- The SC sought the Centre's response on 'totalisers' machines consolidating votes from multiple EVM control units without revealing booth-wise trends as a 'fall-back option', hearing a petition arguing totalisers would protect voter privacy and prevent local-level reprisals.
- This came despite an EC warning that introducing totalisers now, 'when even EVMs are subject to frequent public questioning, may not be the right move', risking fresh allegations and complicating public confidence.

- **How a Totaliser Works**

- A totaliser connects a cluster of 14 EVM control units from 14 polling stations via a cable, providing a consolidated result per candidate across that group, rather than a booth-wise count.

- **The EC's Objections**

- The EC pointed to a complete absence of a legal framework neither the Representation of the People Act nor the Conduct of Election Rules, 1961 recognises totalisers; only the Law Commission 255th report had suggested selective use.
- The EC said totalisers would reduce transparency by aggregating votes across booths, making individual EVMs harder to verify via Form 17C and potentially masking technical malfunction or human error.

- **The Political Response**

- The response from political parties has been a big 'no' , three of six national parties and 18 of 29 State parties opposed the idea, per the EC's submissions.
- The petitioner argued booth-wise verifiability is the backbone of transparent counting, but that the same booth-level data can also let parties target their organisational outreach based on where they've underperformed.

Thank You